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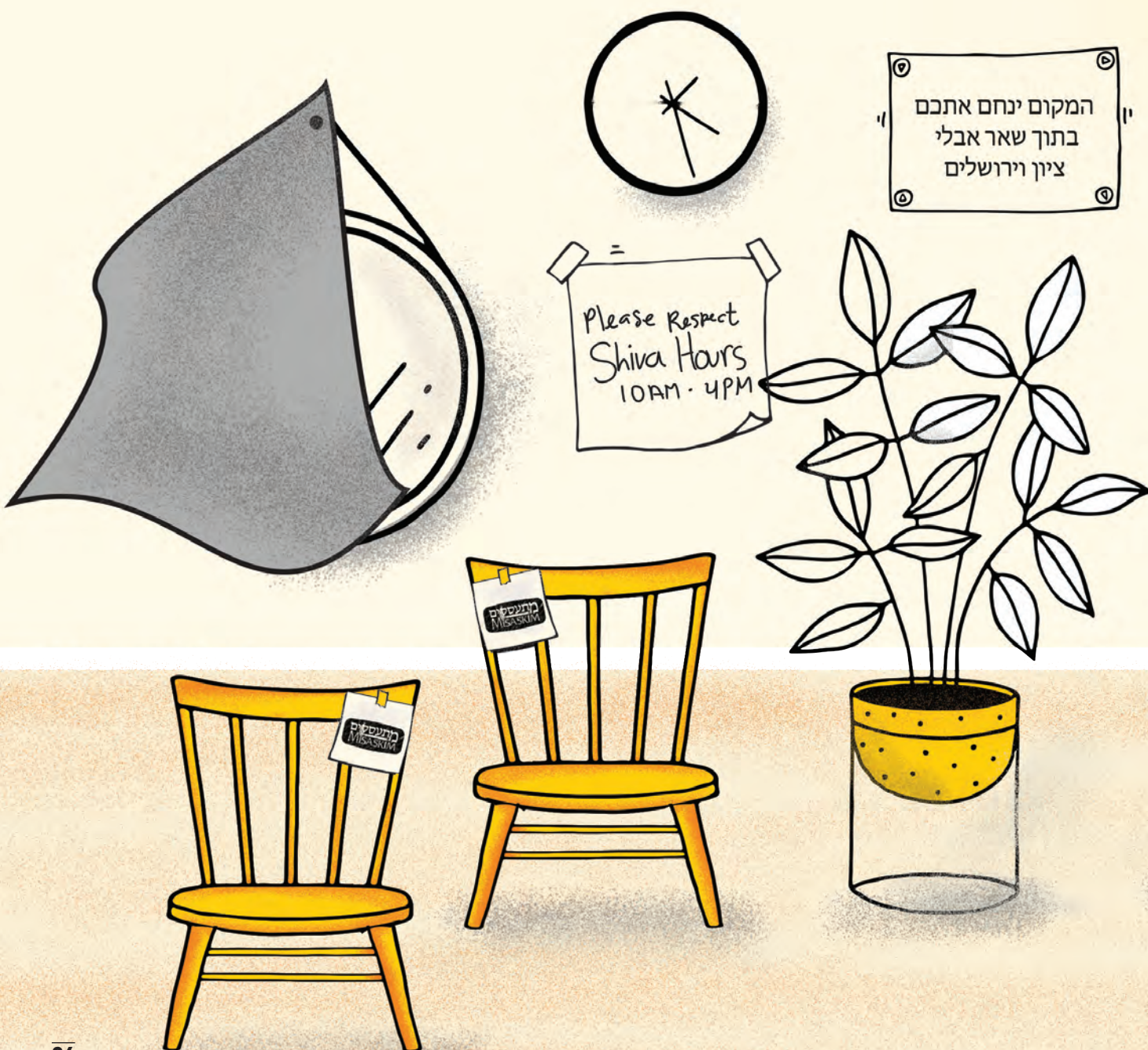
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FREQUENTLY ASKED QUESTIONS REGARDING

PETIRAH & AVEILUS

PART 1: FROM YETZIAS HANESHAMAH UNTIL THE FUNERAL CHAPEL





WE FIRMLY BELIEVE IN THE
IMMINENT ARRIVAL OF MOSHIACH,
WHEN THESE LAWS WILL BE OBSOLETE.
THE FOLLOWING IS THEREFORE
WRITTEN FOR ACADEMIC PURPOSES
ONLY, AS IT IS A SUBJECT IN TORAH.

THIS ARTICLE ADDRESSES ONE OF
THE MOST SENSITIVE TASKS A SHLIACH
MAY BE ASKED TO PERFORM: TO
ENSURE A DECEASED JEW IS BURIED
AL PI HALACHAH, AND TO OFFICIATE
AT THE FUNERAL.

In general, it is customary to avoid learning hilchos aveilus if they are not relevant.¹ I heard that the Frierdiker Rebbe once said, “Until the year 5680 [the year of the histalkus of the Rebbe Rashab] I never studied these halachos.” Twenty-two years later, when Rebbetzin Shterna Sarah passed away (in 5702), the Frierdiker Rebbe told Reb Shmuel Levitin, “You will need to tell me what to do, because we do not engage in these matters [original: *mir tuen nit in di zachen*].”

However, when a shliach is confronted with the passing of a member of his community, he is entrusted with the sacred task of ensuring he or she is buried in the proper way and that the mourners do their part *al pi halachah*. In order to do so, it is imperative to be familiar with the relevant halachos and minhagim.

Rabbi Gavriel Zinner once wrote to the Rebbe that he was asked to compile a book on hilchos aveilus, but he had heard that it was inauspicious to do so. The Rebbe answered, “In this city *in particular*, [such a book] includes *actual* separation from issur. It is especially [encouraged] if you will translate it into English.”² If this is the case in New York, how much more so when on shlichus in a far-flung community!

As in every other area of Yiddishkeit, the funeral includes both halachah and minhagim, as well as minhagei Chabad. However, unlike other subjects, there are many times when a custom *seems* to contradict what is cited in halachah, and we follow it nonetheless (see sidebar on p. 34 for some examples).

¹ See Kovetz Razash, p. 63.

² Toras Menachem: Menachem Tzion, p. 312.

In general, when a family does not have their own minhagim (for example, if they are not yet fully observant), a shliach should do his utmost to run the funeral based on Chabad custom. The Rebbe strongly encouraged following minhagei Chabad with regard to funerals in particular (see sidebar on p. 34 for some examples).

(Of course, if the family has minhagim of their own, they should be respected and followed. The shul of my father, Rabbi Gershon Mendel Garelik *sheyichyeh*, in Milan was a *she'eri's hapeitah* shul, with Holocaust survivors from every country in Europe, and I grew up seeing many different and diverse minhagim. My father's approach was to let everyone do their minhagim as they requested; otherwise, he would do minhagei Chabad.)

On the other hand, a shliach must know how to “pick his battles.” He must determine which things the family will be able to understand and appreciate, and which they will not. While the elements crucial to a Jewish burial cannot be compromised, it may not be possible to implement every minhag Chabad. This is especially considering the fact that often, the shliach is merely officiating at the funeral and not running the show, as the family and/or the deceased has already made all the funeral arrangements. A shliach must therefore know what is worth fighting for and what to let pass.

(Similarly, if a shliach is working together with an established local chevra kadisha who has different minhagim, he must know which matters to push through and which matters to leave as they are.)

Another point worth mentioning is that not every “minhag” has the status of a minhag Yisroel. Some communities may be accustomed to doing things a certain way, but just because their rov or manhig has allowed or allows it does not grant it the status of a minhag, unless it has a genuine source.

Additionally, people often take out of context the notion that with regard to aveilus we follow the lenient opinion.³ One must know exactly when and where this idea can (and should) be applied.

This article will address certain questions pertaining from before the time of passing until leaving the chapel to go to the cemetery. A further installment will discuss the burial, aveilus,⁴ and other related topics, b'eizras Hashem. Readers are encouraged to send their questions to editor@compassmagazine.org so they can be addressed in the next installment.

It is important to mention that this article is not meant in any way to give piskei dinim or a comprehensive treatment of this topic. The goal of the article is merely to present a very general overview of the subject.

It should also be noted that although we have often used the masculine tense when referring to the deceased, all the halachos and minhagim stated below equally apply when the deceased is a woman (unless noted otherwise).

May all the questions discussed in this article remain theoretical, with the fulfillment of the promise that “Hashem will erase tears from every face,”⁵ and may no person ever know of any sorrow.

Note: Those who would like to expand their knowledge about this important topic are encouraged to purchase Rabbi Garelik's madrich to kevrurah and aveilus, titled Hakitzu V'ranenu Shochnei Afar (henceforth referred to as “Madrich”). Additional recommended compilations are The Jewish Mourner's Companion by Rabbi Zalman Goldstein and The Jewish Funeral & Mourner's Guide. They can be purchased online at kehonline.com and seforimsets.com, or in Judaica stores in Crown Heights.

³ At the nichum aveilim of the wife of Rabbi Yochanan Gordon, the Rebbe mentioned that with regard to aveilus, the halachah follows the lenient opinion. The Rebbe continued that acting in this way has an added benefit: as a result, they act leniently with the deceased in the World of Truth. A while later, the Rashag asked the Rebbe for the source of this idea, and the Rebbe said that it was his own thought (*Toras Menachem: Menachem Tziyon*, vol. 2, pp. 356–357; *ibid.*, p. 371).

⁴ The term *aninus* refers to the period of mourning from the moment of the passing until after the burial, while *aveilus* refers to the period of mourning following the burial.

⁵ *Yeshayahu* 25:8.



BEFORE AND DURING PASSING

Q: WHEN IS VIDUY (CONFESSION) RECITED?

A The Mishnah states that one who recites viduy merits Olam Haba.⁶ In fact, when a person is deathly ill, saying viduy is a segulah to be cured, as it sweetens the forces of din.⁷

The purpose of saying viduy is to do teshuvah (to express remorse for his misdeeds and request Hashem's forgiveness), as well as to affirm the basic tenets of our faith. These ideas are best said when the ill person is still cognizant, and should not be pushed off until the last minute.⁸

There are actually two types of viduyim. The first is said at an earlier point, if it appears to be the person's final days or hours, and he is still cognizant. (This viduy may sometimes be recited days or even months before the passing. At one point, the doctors told my wife's grandfather Rabbi Mottel Shusterman [the baal korei in the Rebbe's shul for over 39 years] that he only had a few months left to live. When he heard this, he said this viduy, even though he actually passed away six months later.) The second viduy is recited when it appears to be the person's final moments. (The full text of both viduyim can be found in the *Madrich*, pp. 15–27.)

Depending on the situation, either both viduyim or just one of them are said.

If the ill person is unable to recite the full nusach of the viduy, it is enough for him to simply state, "May my death serve as an atonement for my sins."

6 *Sanhedrin* 43b, cited in *Shulchan Aruch, Yoreh Dei'ah* 338:1.

7 *Maavar Yabok, Imrei Noam* ch. 15. See *Shulchan Aruch, Yoreh Dei'ah* 338:1: "In the merit of saying viduy you will live."

8 *Shaloh, Maseches Pesachim, Ner Mitzvah* §79.

If the ill person is unable to speak at all, he should reflect on the viduy in thought.⁹ If he is unconscious, the viduy should be recited by someone present.¹⁰

If the ill person does not understand Hebrew, he may recite viduy in any language he understands. (For the text of the viduy in English, see *The Jewish Mourner's Companion*, pp. 143ff.)

Before reciting viduy, the ill person should wash his hands. A male should don tzitzis.¹¹

If possible, the person's body and the surrounding area should be clean before viduy is recited.

Viduy is said even on Shabbos, yom tov, and other days when Tachanun is not recited.¹²

Q: WHAT ELSE SHOULD BE DONE WHEN A PERSON IS APPROACHING DEATH RL?

A If necessary, it is critically important to discuss the topic of kevu-ras Yisroel with the family, to ensure the deceased will be buried al pi halachah.

The ill person should be told to request forgiveness from anyone he may ever have slighted, whether financially, verbally, or in any other way.¹³ Additionally, it is an opportune time for him to bless his children and instruct them to follow the correct path. (Before the Rebbe Rashab passed away, he blessed his son and his granddaughters, using the nusach of Bircas Kohanim, as is done on erev Yom Kippur.¹⁴)

In the case of any death-related question (e.g., pulling the plug, DNR [Do Not Resuscitate], organ donation), a rov must be consulted. (One organization that provides guidance on such matters is the Boro-Park-based Chayim Aruchim. They can be reached at 718-301-9800.)

It is also advisable to find out in a very discreet way if the person wrote a will (see below, p. 30) and where it is found (e.g., in a safe, in the office of his rabbi or lawyer, etc.).

If the deceased or one of his close relatives is a kohen, it is customary to bury the deceased near the edge of the cemetery, to enable his relatives to come at a later date and pray in proximity to the kever. If the family has not yet purchased a plot, this may be a point to be mentioned to them.

(On a related note, before a kohen visits a cemetery, he should discuss with a rov if and how to do so.)

Q: WHAT IS THE CORRECT PROCESS DURING YETZIAS HANESHAMAH?

A It is a mitzvah to be with a person at the time of the yetzias neshamah.¹⁵ However, relatives who will not be able to control themselves from crying should be told to leave the room, so as not to cause him pain.¹⁶ Care should be taken not to stand at the foot of the bed.¹⁷

Those present should make sure all of the person's limbs remain on the bed by surrounding the bed with chairs (with the chairs' backs turned toward the bed). However, if this was not done and he stretched

9 *Shulchan Aruch, Yoreh Dei'ah* 338:1.

10 See *Madrich*, p. 26, fn. 17.

11 *Maavar Yabok, Sifsei Tzedek* ch. 9, citing the Ramban.

12 *Darkei Chesed*, p. 255.

13 *Darkei Chesed*, p. 27–28.

14 *Ashkavta DeRebbi*, pp. 98–99.

15 *Shulchan Aruch, Yoreh Dei'ah* 339:4.

16 *Darkei Chesed*, p. 29.

17 As that is where the *malach hamaves* stands; *Maavar Yabok, Sifsei Renanos* ch. 6.

a limb outside of the bed, it may not be returned, as it is forbidden to touch a *goses* (someone who is on the verge of passing).¹⁸

If possible, candles are lit (out of the ill person's eyeshot) and the windows in that room are opened.¹⁹

Those present should recite the possuk of *Shema Yisroel* once; *Boruch Shem* etc. three times; *Hashem Hu HaElokim* seven times; and *Hashem Melech, Hashem Malach, Hashem Yimloch Le'olam Va'ed* once.

Kohanim may not be present (except for those relatives who will be obligated to keep *aveilus*, see below, p. 31).

Q: WHAT SHOULD BE DONE AFTER YETZIAS HANESHAMAH?

A After the death has been confirmed (by a doctor, paramedic, etc.), the face of the deceased should be covered with a sheet (if possible, one that is white).²⁰ If there is no one to confirm the death, wait about fifteen minutes from when it seems the death occurred (i.e., he has stopped breathing, etc.) before covering his face.

If there is a local chevra kadisha, they should be informed as soon as possible to come and prepare the deceased to be taken to the funeral home. (See the following question for the process of preparing the body if there is no chevra kadisha.)

Once the body has been prepared and covered, it is customary to recite the pesukim printed in the *Madrich* (p. 36). This is followed by *Tehillim kapitlach* 23 and 91 (the latter kapitel preceded by the possuk *Vee'hi Noam* three times).

Ask the hospital personnel to kindly try to expedite the issuance of the death certificate. You can explain to them that although most people are not in a rush to arrange the funeral, the Jewish custom is to bury the deceased as soon as possible, and most funeral arrange-



ments cannot begin until the death certificate is issued.

Arrange for a Jew to remain with the body (for *shemirah*) until the arrival of the representative of the funeral home. (See below, p. 30, regarding arranging for *shemirah* after the body has been transferred to the funeral home.)

All those who were in the room during the *yetzias neshamah* should wash *negel vasser* after leaving.²¹

Although the *Shulchan Aruch* states that all those in the room at the time of the *yetzias neshamah* should rend their garments (*kriah*),²² the custom today is not to do so.²³

If the *petirah* took place in a house, all drinkable, uncovered water in the house should be poured out (e.g., water in an open bottle or uncovered pot). This is done to publicize the death, so that the bad tidings will not need to be verbalized. Only water that is in its natural state should be poured out (and not water that is cooked, frozen, mixed with other fluids or foods, etc.). If the *petirah* took place in a hospital, water does not need to be poured out.²⁴

Depending on one's location, there are various regulations in place with regard to autopsies and how to oppose them. Two extremely helpful organizations, based in New York but active throughout the United States, Canada, and the United Kingdom, are *Chesed Shel Emes* (718-436-2121) and *Misaskim* (718-854-4548). They can also be contacted regarding any other death-related issue that may arise.

Q: WHAT IS THE PROCESS OF PREPARING THE BODY TO BE TAKEN TO THE FUNERAL HOME²⁵ (IF THERE IS NO CHEVRA KADISHA)?

A If possible, those handling the body should immerse in the mikvah beforehand.²⁶

18 *Darkei Chesed*, pp. 29–30.

19 *Darkei Chesed*, p. 30.

20 The reason for this is because looking at the face of the deceased can have negative effects on both the onlooker and the deceased (*Darkei Chesed*, pp. 31–32).

21 *Piskei Teshuvos* 4:25.

22 *Shulchan Aruch, Yoreh Dei'ah* 340:5.

23 *Darkei Chesed*, p. 32.

24 *Shulchan Aruch, Yoreh Dei'ah* 339:5 and *Shach* there. *Darkei Chesed*, pp. 30–31.

25 Regardless of where the body will be interred, generally it must first be taken to a funeral home, where they will prepare the necessary paperwork, etc., and prepare the body for transport.

26 *Darkei Chesed*, p. 33.



The following is a step-by-step guide of what is to be done²⁷:

- ⊙ Those handling the body should ask for mechilah, as follows: Mention the name of the deceased and that of his father, and state that all you will do will be for the honor of the deceased. If the deceased or his father do not have a Jewish name, or if the name is unknown, use the secular name instead. (Do not speculate. For example, if his name is Jack, do not assume his Hebrew name is Yaakov. Unless you know the Hebrew name with certainty, use the secular name.)

- ⊙ Close the eyes of the deceased. Straighten his body, hands, and legs and close his mouth. (It is not our minhag for the eyes to be closed by the son[s] of the deceased.)

- ⊙ Tie the two big toes together with a piece of straw, if available. (If unavailable, skip this step.)

- ⊙ If tubes must be removed from the body, it is preferable that they be removed by a Jew (who is familiar with how this is done).

- ⊙ Gather any blood that came out during or after the petirah (including blood found on his clothing or sheets) and store it in a bag, to be placed in the aron after the taharah.

- ⊙ If possible, wrap the deceased in a sheet and lower him onto the floor, with the legs facing the doorway. (This process is called *hashkavah*, or *uphoyben* in Yiddish.) If straw is available, first place some straw on the floor where the deceased will be laid. If it is not possible to lower the deceased onto the floor (as is usually the case in a hospital), the hashkavah will be done later, at the time of the taharah.

- ⊙ As the deceased is lowered, ask for mechilah again (as above) and recite the pesukim printed in the *Madrich* (p. 36).

- ⊙ If possible, place a non-mekabel-tumah item²⁸ (such as a stone or some straw) beneath the head. Do not use anything that imparts warmth (such as a pillow).

- ⊙ If possible, place one or two lit candles near the head.

²⁷ Most of these instructions are taken from *Darkei Chessed*, pp. 32–33.

²⁸ See *Darkei Chessed*, p. 170.

BEFORE THE FUNERAL

Q: HOW CRUCIAL IS IT TO ENSURE THAT A JEW STAYS WITH THE BODY THE ENTIRE TIME (FOR SHEMIRAH)?

A The main idea behind shemirah is to protect the body from mice and other destructive elements. In a funeral home, the body is kept in a fridge and is protected, alleviating this concern. However, shemirah is also a method of showing respect to the deceased. Therefore, one should do his best to provide proper shemirah to whatever extent possible, by ensuring a Jew stays with the body (even after it has been transferred to the funeral home) and says Tehillim, etc.

As a rule, the shomer should be a male. However, in cases of emergency, some communities allow a woman to take this position (even if the deceased is a male).²⁹

If the body is in the morgue and the shomer cannot sit in that room, he may sit anywhere in the area. If possible, he should try to sit in a place where he can see the door of the room where the body is found.

It is forbidden to eat, drink, smoke, daven, or learn Torah in the same room as the deceased, because doing so is considered mocking the deceased, who is now unable to engage in these activities (*lo'eg larash*). Similarly, tzitzis strings should be tucked in.³⁰ However, it is permitted to do these activities in a nearby room (if the door is closed and the deceased cannot be seen), and this is indeed what the shomer should do if he needs to daven, eat, and so on. Tehillim may be said in honor of the deceased even in the same room.³¹

Q: WHAT PREPARATIONS ARE NECESSARY BEFORE THE FUNERAL?

A Find out if a will was prepared, where it is located, and what it contains (it may include information regarding the funeral, burial spot, etc.).

Find out the following details:

- ⊙ The name of the deceased and his parents
- ⊙ Where the deceased is located, and the cause of his death
- ⊙ If it will be necessary to wait for the arrival of a relative before conducting the funeral

With a married man, locate his personal tallis, to be used for the taharah. If he was not married, locate his tallis katan. (If he does not own a tallis or tallis katan, provide one.)

(If working with a local chevra kadisha, transfer the above information and the tallis/tallis katan to them.)

The mourners should be given advance notice on the subject of kriah, so they will be well prepared regarding what to wear to the funeral. As will be elaborated upon below, a son tears his jacket and shirt, all other male relatives only tear their jacket, and all women only tear a single garment. Knitted fabric should be avoided for kriah, as it unravels.

Some people believe that it is an honor for the deceased if they tear the nicest item of clothing they own. This is incorrect; they may tear an item they are planning to discard in any case.

The mourners should also be told to bring along non-leather footwear to the cemetery (in a bag), to don after the burial.

²⁹ See *Nitei Gavriel*, vol. 1, 9:6–7.

³⁰ *Darkei Chessed*, p. 37.

³¹ *Nachamu Ami* (Noeh) 5:4.

AT THE CHAPEL

Q: MAY A KOHEN ENTER THE CHAPEL?

A Aveilus and tum'ah are two separate issues. There are certain relatives for whom a kohen may not become tamei, but he still must mourn them. Kohanim may not enter the chapel, due to the issur for a kohen to be in the same structure as a corpse. However, a kohen may enter the chapel (or otherwise become tamei) if the niftar is one of the following individuals: his father, his mother, his wife (if their marriage is halachically sanctioned³²), his son, his daughter, his brother, and his sister (unless she is, or has once been, married).³³

A kohen may not enter the chapel if there are other corpses (or limbs) inside.³⁴ Additionally, he may not be *metamei* to one of the above-mentioned relatives if an organ was removed from the body during or after the petirah.³⁵ In the case of an amputation, a rov should be consulted.

During the ninth month of pregnancy, the wife of a kohen should conduct herself in these matters like a kohen (as the baby might be a boy).³⁶

Q: HOW IS THE TAHARAH PERFORMED?

A A detailed description of how the taharah is performed will appear in a future installment, b'ezras Hashem.

Q: IS IT PERMITTED TO ARRANGE A VIEWING?

A A viewing is halachically forbidden due to it being a *bizayon haniftar*, a dis-

32 As opposed to a divorcee or another woman forbidden to a kohen.

33 *Shulchan Aruch, Yoreh Dei'ah 373:4*. A kohen may be *metamei* to a half-sibling if they share a father, but not if they share a mother (ibid.).

34 See the sources cited in *Madrich*, p. 52, fn. 7.

35 *Shulchan Aruch, Yoreh Dei'ah 373:9; Nachamu Ami 8:4*.

36 *Darkei Chesed*, p. 208.

grace for the deceased. Rabbi Yitzchak DovBer Ushpal, the head of the Lubavitcher chevra kadisha in New York for many years, prohibits this practice vehemently in his sefer³⁷ and brings several sources for this. When a person passes away, his face is immediately covered (see above, p. 29) and is uncovered only for the taharah. (The only other exception I know of is if there is an identification issue. In such a situation, one member of the family is brought into the taharah room to identify the body.)

Q: WHEN DO THE MOURNERS ASK FOR MECHILAH?

A Lechat'chilah asking for mechilah is the first thing that is done at the chapel.³⁸ The body is brought to a private room where family members ask for forgiveness, and then brought to the main room, where others can ask as well. However, if a mourner or other individual arrived late to the funeral, he may approach the aron at any point and ask for forgiveness.

There is no specific nusach that is said. Mentioning the name of the deceased and that of his father,³⁹ the mourner can simply state, "Please forgive me," or something to that effect. (A child does not mention his parent's name when asking for mechilah.) If the deceased or his father do not have a Jewish name, or if the name is unknown, the secular name should be used instead.⁴⁰ (Do not speculate. For example, if his name is Jack, do not assume his Hebrew name is Yaakov. Unless the Hebrew name is known with certainty, the secular name should be used.)

Q: WHEN IS KRIAH DONE?

A Mei'ikar hadin, kriah is supposed to be done the moment a person hears the sad news. This is known in halachah as *sha'as chimum*. However, today most people do not know how to do the kriah correctly (and require the guidance of the rov or shliach). It has therefore become the accepted minhag throughout world Jewry that the kriah is done in the chapel (or wherever the funeral starts⁴¹) when standing near the aron, assisted by either the rov, member of the chevra kadisha, or shliach.⁴² If a mourner was not present at that time, he should do the kriah in the cemetery, when the

37 *Darkei Chesed*, p. 31, fn. 1.

38 This is done after the sons don the gartel on the deceased (as will be explained, b'ezras Hashem, in a future installment detailing how the taharah is performed).

39 *Darkei Chesed*, p. 32.

40 *Zichron Meir* (Levin), p. 301.

41 The Rebbe did kriah for the Rebbetzin in his home, right before the aron was taken out for the funeral.

42 *Darkei Chesed*, p. 56; *Gesher Hachaim*, pp. 56–57.





aron is still in the car, before it is taken out for the burial.

If you are faced with a situation where a mourner does not want to do the kriaah in the chapel or at the funeral, or if he is not wearing suitable garments, you can offer to pay him a visit at home (during the shiva), where you will help him do the kriaah procedure.

Q: WHICH RELATIVES ARE OBLIGATED TO DO THE KRIAHA?

A All relatives who are obligated to sit shiva are obligated to do the kriaah. This includes sons, daughters, brothers, sisters (whether single or married), a father, mother, and spouse. A half-sibling (whether

through the father or mother) does the kriaah as well.⁴³

Kriaah is performed first by the men and then by the women. It is advisable (but not mandatory) for the mourners to do the kriaah in the following order (as applicable): sons, husband, father, brothers, daughters, wife, mother, sisters.

If a couple was divorced and one of them passed away, the ex-spouse may participate in the levayah, but may not do the kriaah.⁴⁴ If they decided to divorce but did not actually do so, a rov should be consulted as to whether kriaah should, may, or should not be done.

An adopted or step-child does not do the kriaah or follow the other dinim of aveilus.⁴⁵ If it appears that the circumstances might warrant an exception to this rule, a rov should be consulted.

Q: HOW IS KRIAHA PERFORMED?

A Another person (e.g., rov, member of chevra kadisha, shliach) begins the kriaah process by grasping the neckline of the garment and tearing it slightly, using scissors or a blade. If the mourner is a woman, this is done by a woman (e.g., the shlucha).

Next, the mourner grasps the garment and recites the berachah of *Boruch Atah Ado-nai Elo-heinu Melech Ha'olam Dayan Ha'emes*. The mourner then proceeds to tear at least one tefach (about 4 in./9 cm.) downward by hand.⁴⁶ If the mourner finds it difficult to tear, the rov, member of chevra kadisha, or shliach may assist with the blade.

When tearing for a parent, a male mourner tears both his jacket and his shirt, on the left side.⁴⁷ When tearing for any other relative, only the jacket (*begeg ha'eilyon*) is torn, on the right side.⁴⁸ If the mourner does not usually wear a jacket, in either case he tears only his shirt.⁴⁹

The mourner should not tear his coat, sweater, or vest. (They should be removed before the kriaah and donned again afterward.) Similarly, he does not tear his tzitzis.⁵⁰ (The tzitzis does not need to be removed before kriaah.)

Female mourners only tear a single garment (on the left side for a parent, and on the right side for other relatives). It is suggested (for reasons of tznius) that they wear a shell or T-shirt underneath, and tear a blouse or overshirt. If a female mourner is only wearing one shirt, she should hold the tear together with a safety pin.

If a mourner tore the wrong side of their garment, they do not need to tear again on the correct side.

(As mentioned above, p. 30, the mourners should be given advance notice on the subject of kriaah, so they will be well prepared regarding what to wear to the funeral.)



43 Shulchan Aruch, Yoreh Dei'ah 374:4; unlike a kohen, who may only be metamei to a half-sister if they share a father, see above, fn. 33.

44 Darkei Chessed, p. 161.

45 See Shulchan Aruch, Yoreh Dei'ah 374:6.

46 Darkei Chessed, pp. 55–56; Kitzur Shulchan Aruch 195:5.

47 The siman for this is, "al aviv ve'al imo, keneged libo." For a father or mother, one tears opposite the heart.

48 Shulchan Aruch, Yoreh Dei'ah 340: 9–10, and Taz there §6.

49 See Shu"t Minchas Yitzchak 9:126.

50 Darkei Chessed, p. 228.

Q: MAY KRIAH BE DONE ON A RIBBON OR TIE?

A Ribbons are not considered garments and do not qualify for kria. According to most poskim, the same applies to a tie.

If the family insists on doing a black ribbon cutting and they cannot be dissuaded, they should be encouraged to do a proper kria after the funeral, during the shiva (see above, p. 32).⁵¹

Q: WHEN SHOULD THE BERACHAH OF DAYAN HA'EMES BE RECITED?

A Mei'ikar hadin, the berachah should be recited immediately upon hearing the sad news. However, it has become the accepted minhag throughout world Jewry to say the berachah at the time of the kria, which is done later, at the chapel or before the funeral procession (see above, pp. 31).⁵²

Since the berachah is not tied to the kria, in the event that the family does not want to do a proper kria at the time of the funeral (see previous question), they should still recite the berachah at that time. In such a case, they should not repeat it later when doing kria at home.

(The following is one example that illustrates that the berachah and kria are two separate obligations: On Chol Hamoed, only children tear on the day of the burial, while the other mourners tear on motzoei yom tov.⁵³ Nevertheless, all the mourners recite the berachah on the day of the burial.⁵⁴)

Q: WHICH CHAPTERS OF TEHILLIM ARE CUSTOMARILY RECITED, AND MAY I ADD OTHER CHAPTERS?

A According to our minhag, kapitel 16 is said in the chapel after the kria, and-

kapitel 49 is said in the cemetery after the burial. Many communities have the minhag of reciting various other kapitlach; this does not pose a problem.

Kaddish is not recited at this point (it is recited later, after the burial).

Q: WHAT SHOULD BE DONE IF THE FAMILY EXPECTS A EULOGY? WHAT ABOUT IF IT IS A DAY WHEN HESPED IS FORBIDDEN?

A Although halachah states that it is a great mitzvah to eulogize the deceased,⁵⁵ minhag Chabad is to refrain from doing so. Indeed, it is well known that no hespedim were said at the levayos of any of the Rebbeim and their family members. (See sidebar on p. 34 for some anecdotes regarding the importance of upholding this minhag.)

What is the reason for our minhag? Some explain that this is because in recent times, most hespedim are either replete with exaggerated praise, or are employed by the maspidim to attract honor to themselves, and such hespedim are certainly not respectful of the deceased.⁵⁶ I once heard a similar sentiment from a chassidisher Yid: "Heint s'iz nita ver zol maspid zein, un s'iz nita vemen tzu maspid zein [Today there is no one worthy of giving a hesped, and there is no one worthy of receiving a hesped]."

Rabbi Shlomo Yosef Zevin relates in *Sippurei Chassidim* that once, during a visit to the cemetery in Homil, Reb Aizik Homiler read the inscription on the matzeivah of a certain individual. He proceeded to summon the head shamash of the chevra kadisha, and said to him, "Above, they are demanding of the deceased, 'Where are all the maalos described on your matzeivah?' Go bring a chisel and remove the inscription." The shamash did as he was told. Reb Aizik later commented, "Boruch Hashem, I did a big favor to the neshamah of the deceased!"⁵⁷

For this reason, we refrain from delivering hespedim, and, similarly, when preparing a matzeivah, we limit the inscription to what is undoubtedly true.

Now, it is a known fact that at every levayah outside Lubavitch, eulogies are given. What should a shliach do if he is asked to give a eulogy?

I believe that this is an opportunity a shliach should certainly not forgo.

Rabbi Yitzchok Dovid Groner once asked the Frierdiker Rebbe what to do if he is asked to speak at a *hakamas matzeivah* (unveiling). The Frierdiker Rebbe replied that if the purpose of the speech is to arouse the listeners in matters of Yiddishkeit and yiras shomayim, "you should certainly speak to them."⁵⁸ Similarly, if the purpose of the shliach's "eulogy" is to inspire the crowd to accept a mitzvah in the merit of the deceased and the like, he may—and *should*—speak (even if he will also mention some nice things about the person's life), as such a speech is not considered a hesped. To the contrary, such a speech will serve as a zechus for the neshamah of the deceased.

I heard from many shluchim that at so-called eulogies, they suggest that everyone present should undertake at least one mitzvah in honor of the deceased. The men should put on tefillin (for starters, at least once a week or once a month), and the women should light Shabbos candles, and they should encourage others to do so as well. Just this single act motivated many people to start keeping a lifestyle of Torah and mitzvos.

Accordingly, such a speech may (and should) be given even on a day when hespedim are forbidden.

The next installment of this article will b'e'zras Hashem answer questions regarding burial, shiva, and other related topics. Please send your questions and comments to editor@compassmagazine.org.

51 *Darkei Chesed*, pp. 56–57. *Zichron Meir*, p. 198, fn. 69.

52 *Gesher Hachaim*, pp. 56–57. The reason for this is so that the mourner will not forget to recite the berachah (*Sheyarei Kenesses Hagedolah*, *Yoreh Dei'ah*, *Hagahos Al HaTur* 340:1).

53 *Shulchan Aruch*, *Yoreh Dei'ah* 340:31.

54 See *Chol Hamoed Kehilchaso* 12:12.

55 *Shulchan Aruch*, *Yoreh Dei'ah* 344:1.

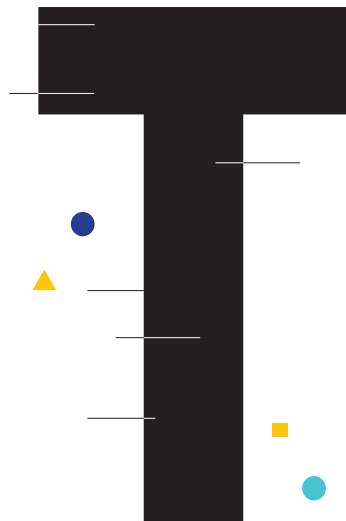
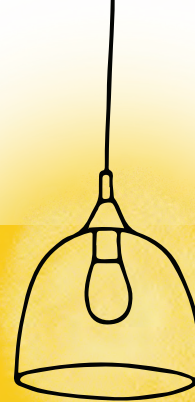
56 *Gesher Hachaim*, p. 121.

57 *Sippurei Chassidim*, *Mo'adim*, story #364.

58 *Igrus Kodesh* of the Frierdiker Rebbe, vol. 17, pp. 392–393.



MINHAGEI CHABAD WITH REGARD TO KEVURAH



THE WAY A FUNERAL IS DONE IS ALMOST EXCLUSIVELY BASED ON MINHAGIM. WHAT'S MORE, THERE ARE TIMES WHEN MINHAG CHABAD SEEMINGLY GOES AGAINST HALACHAH, AND WE FOLLOW OUR MINHAGIM REGARDLESS.

THE FOLLOWING ARE A NUMBER OF EXAMPLES:

⊙ ALTHOUGH HALACHAH STATES THAT IT IS **A GREAT MITZVAH TO EULOGIZE THE DECEASED,**⁵⁹ MINHAG CHABAD IS TO REFRAIN FROM DOING SO. (SEE P. 33 FOR SOME POSSIBLE REASONS FOR THIS, AND FOR HOW THIS APPLIES TO SHLUCHIM.)

⊙ There is a custom upheld in some communities that women do not attend funerals. Although this custom is based on halachah,⁶⁰ Chabad is not stringent regarding this practice (see below). However, throughout the funeral men and women must stand separately (when-ever and to whatever extent possible).

⊙ Minhag Chabad is not to say *Keil malei rachamim* at the funeral, unlike in other communities.

The Rebbe strongly encouraged following minhagei Chabad with regard to kevurah in particular, as illustrated by the following anecdotes:

⊙ When Rabbi Berel Rivkin, rosh yeshivah of Torah Vodaas, passed away, his son Rabbi Sholom Rivkin approached the Rebbe to notify him. The Rebbe told him to make sure that no hespedim would be said, since he was a Lubavitcher.⁶¹ All the roshei yeshivah prepared hespedim, but none were able to share them.⁶²

⊙ Rabbi Yitzchak DovBer Ushpal once wrote to the Rebbe, suggesting that it should be instituted that women refrain from attending funerals (for the reasons quoted in halachah). The Rebbe responded that we should not bring chumros into Chabad that have not been accepted until now.⁶³

⊙ In many circles the custom is that children do not follow the aron of their father, but that they do follow the aron of their mother. However, our minhag is that children (and grandchildren) do not follow the aron of either parent.⁶⁴

There was once a levayah of a certain woman in front of 770, and Rabbi Yisroel Jacobson told the children that they may follow the aron. Later, Rabbi Leibel Groner showed him that in *Sefer Haminhagim* it says otherwise, and Rabbi Jacobson replied that he believed the minhag is that children do follow their mother's aron. Rabbi Groner proceeded to ask the Rebbe about this, and the Rebbe replied that we should do as is stated in *Sefer Haminhagim*.⁶⁵

(It should be noted that often it may not be possible for a shliach to implement this minhag, as in American culture it is expected that the family will follow the procession.) 📌

60 See *Alter Rebbe's Shulchan Aruch, Hilchos Shemiras Guf Venefesh* §10.

61 *Sichos Kodesh* 5737, vol. 2, *hosafos* p. 3.

62 A related anecdote: Rabbi Menachem Mendel Lokshin was the menahel of Agudas Chasidei Chabad during the 1920s and early 1930s. He passed away in MarCheshvan 5694 (1933). Rabbi Yisroel Jacobson related that the members of Agudas Chasidei Chabad decided that no eulogies would be given at his levayah, as per minhag Chabad. Present at the levayah were members of Agudas Harabonim, of which Rabbi Lokshin was a member. When they saw that no hespedim would be said, unlike the accepted custom, they were astonished and impressed at the extent to which Chabad chassidim were steadfast to stick to their minhagim (*Zikaron L'nei Yisroel*, p. 196).

63 *Igros Kodesh*, vol. 31, p. 335.

64 *Sefer Haminhagim*, p. 77.

65 See a copy of the ksav yad kodesh of this correspondence in *Madrich*, p. 61.

59 *Shulchan Aruch, Yoreh Dei'ah* 344:1.